



File No.: EXP202300701

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint on October 6, 2022, with the German data protection authority of North Rhine-Westphalia. The complaint is directed against IBERIA LÍNEAS AÉREAS DE ESPAÑA, S.A. OPERADORA with NIF A85850394 (hereinafter, IBERIA). The reasons for the complaint are as follows:

The claimant requested information on September 7, 2022, under Article 15 of the GDPR regarding their data processed by IBERIA at the German email address ***EMAIL.1 and at the Spanish email address ***EMAIL.2. IBERIA only rejected the requests for compensation for the damages caused; however, the request for information under the GDPR was neither addressed nor rejected, it was simply ignored.

Along with the complaint, the following is provided:

- Printout of an email sent on September 7, 2022, by the claimant to ***EMAIL.2 and ***EMAIL.1, with the subject "Request for refund - reference number: XXXXXXXX - XXXXXX - booking code: XXXXXXXX" (unofficial translation: "Solicitud de reembolso- número de referencia XXXXXXXX - XXXXXXXX – código de reserva: XXXXXXXX"), with the following content: "Dear Sirs and Madams, Due to an error on the part of your airline, I was denied boarding on my departure from ***PAÍS.1. This error has already been acknowledged by your hotline staff and I have been assured of an uncomplicated refund of my costs. In the spirit of a good and trusting customer relationship, I therefore request a short-term refund of my additional expenses incurred in this respect in the amount of XXXXXX euros. Please find all further details including copies of the payment receipts in my letter attached. I have already submitted this application under the above reference number XXXXXXXX. Yours sincerely A.A.A." (unofficial translation: "Estimados Señores y Señoras, Debido a un error por parte de su aerolínea, se me denegó embarcar en mi partida desde ***PAÍS.1. Este error ya ha sido reconocido por su personal de atención telefónica y se me aseguró un reembolso de mis costes sin complicaciones. En el espíritu de una buena relación con el cliente, solicito, por lo tanto, un reembolso a corto plazo de mis gastos adicionales incurridos a este respecto por un importe de XXXXXXXX euros. Encontrará todos los detalles adicionales, incluidas copias de los recibos de pago en")

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my attached letter. I have already submitted this request under the previous reference number XXXXXXXXXX. Yours sincerely, A.A.A."

- Copy of a letter sent by email to ***EMAIL.2 and ***EMAIL.1, in which, in addition to requesting reimbursement of incurred expenses, it states: "II. Right to information under Article 15 of the General Data Protection Regulation (GDPR)

Furthermore, I request that you provide me with information on all data stored by you in connection with the above booking. In particular, I request that you send me all correspondence, telephone contact records, recordings of conversations, etc. You are welcome to provide this information by e-mail or alternatively by post. You are welcome to provide this information by e-mail or alternatively by post. The claim arises from Article 15 (1) of the GDPR. The information must be provided free of charge and without delay, but at the latest within one month, Article 12 (3) sentence 1 of the GDPR. I have therefore noted 07.10.2022 as the deadline." (unofficial translation: "Right to information under Article 15 of the General Data Protection Regulation (GDPR)

Furthermore, I request that you provide me with information on all data stored by you in connection

with the above booking. In particular, I request that you send me all correspondence, recordings of telephone calls, recordings of conversations, etc. You may provide this information by email or by postal mail. The claim arises from Article 15 (1) of the GDPR. The information must be provided free of charge and without delay, at the latest within one month, Article 12 (3) sentence 1 of the GDPR. Therefore, I have noted 07.10.2022 as the deadline”).

- Printout of an email sent on January 18, 2023, from ***EMAIL.3 to the claimant with the subject “In refer to your request number: XXXXXX - XXXXXXXXXXXX” (unofficial translation: “In reference to your request number: XXXXXX -XXXXXXX”), containing the following content: “Dear Mr./Mrs. A.A.A., In response to your request for data access and pursuant to article 15 of General Data Protection Regulation (GDPR) and to relevant national data protection laws also applicable we are glad to attach hereto a copy corresponding to the identity data provided by you of the personal information existing in the following Iberia data records” (unofficial translation: “Dear Mr./Mrs. A.A.A.: In response to your request for data access and in accordance with Article 15 of the General Data Protection Regulation (GDPR) and the relevant applicable national data protection laws, we are pleased to attach here a copy corresponding to your provided identification data of the personal information existing in the Iberia data records.” This email includes six PDF files. Copy of the data attached to the previous email, which includes, among other things, the following information: Information of a case number XXXXXXX-XXXXXXX with an opening date of September 7, 2022, and a closing date of January 3, 2023, and whose passenger information matches the name of the claimant, and includes a list of actions taken in this case related to a denial of boarding to the claimant and a claim from an OMIC (Municipal Consumer Information Office).

SECOND: Through the “Internal Market Information System” (hereinafter IMI System), regulated by Regulation (EU) No. 1024/2012, of the European Parliament

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and of the Council, of October 25, 2012 (IMI Regulation), whose objective is to promote cross-border administrative cooperation, mutual assistance among member states, and the exchange of information, the aforementioned complaint was transmitted on January 19, 2023, and was registered with the Spanish Agency for Data Protection (AEPD) the following day. The transfer of this complaint to the AEPD was carried out by the German data protection authority of North Rhine-Westphalia, considering that it does not constitute cross-border processing within the terms of Article 4.23 of the GDPR, and therefore requested this Agency to handle the case as the competent authority under Article 55.1 of the GDPR.

THIRD: On February 13, 2023, in accordance with the then-current Article 64 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint submitted by the complainant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On July 7, 2023, documents were submitted to the AEPD on behalf of IBERIA in response to an information request, with entry registration numbers ***REGISTRO.1 and ***REGISTRO.2, in which the following information was provided, among others:

1. A copy of parts of the privacy policy published on IBERIA's website in effect between July 22, 2022, and June 30, 2023. This privacy policy indicates, as a means of contact with the data protection office, the email address “***EMAIL.3.”

2. Indication, regarding the complainant's request, that “initially, a complaint was filed through which reimbursement of expenses incurred as a result of the error recognized by the Company concerning

the reservation of their flight number XXXXXX (PNR) was requested, as evidenced in Annex 1 where it is noted that on September 7, 2022, A.A.A. sent their request to the email addresses ***EMAIL.1 and ***EMAIL.2.”... “For this reason, from the very beginning, the complaint was associated with a consumer matter, dissociating from this request the management regarding the exercise of the right of access in data protection matters.”

3. Indication that IBERIA provides other channels for exercising data protection rights, and an excerpt from IBERIA's privacy policy is provided, indicating how data protection rights can be exercised as follows:

“You can exercise, if you wish, the rights of access, rectification, and deletion of data, as well as request that the processing of your personal data be limited, oppose it, request the portability of your data, as well as...

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not be subject to automated individual decisions through the following means:

- If you are a REGISTERED CUSTOMER, you can exercise most of these rights through your online profile at ***URL.1, accessing your private area.
- If you are a MEMBER OF IBERIA PLUS, you can exercise most of these rights through your online profile at ***URL.1, accessing your private area of Iberia Plus in the "My Profile/Preferences" section.
- Likewise, if you are a MEMBER OF ON BUSINESS, you can also exercise most of these rights through your online profile at onbusiness.iberia.com, accessing your private company area.
- To exercise the rest of your rights, or if you are NOT A MEMBER OF IBERIA PLUS or ON BUSINESS, or a REGISTERED CUSTOMER, you can exercise each of the aforementioned rights through the online individual rights management form on our website accessible through Personal Data Management.” [this “Personal Data Management” consists of a link to a web form, of which a screenshot is provided showing that the exercise of the different data protection rights can be requested: “Access”, “Modification/Update”, “Objection/limitation of processing”, “Cancellation/deletion” and “Portability”]

4. Printout of an email sent from the claimant's email to “***EMAIL.2” and “***EMAIL.4”, dated January 15, 2023, which IBERIA indicates is the first time the claimant has contacted IBERIA's data protection office.

5. Indication that the exercise of the claimant's right of access was responded to on January 18, 2023. On July 20, 2023, this Agency navigated the website <https://www.iberia.com>, and obtained, among other information, the following:

6. Privacy policy published on IBERIA's website in effect from July 22, 2022, to June 30, 2023. In this privacy policy, the following channels are observed for contacting IBERIA:

- In the section “Our commitment to privacy,” it is stated that “Throughout the Privacy Policy, you will find a series of specific examples of why and how we use your personal data. If you have any questions, please contact us by writing to our Data Protection Office via email at ***EMAIL.4.”
- The content of the section “What are your rights when you provide us with your data?” is as follows: “You can exercise, if you wish, the rights of access, rectification, and deletion of data, as well as request that the processing of your personal data be limited, object to it, request the portability of your data, as well as not be subject to automated individual decisions through the following means:

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- If you are a REGISTERED CUSTOMER, you can exercise most of these rights through your online profile at www.iberia.com, accessing your private area.

- If you are a MEMBER OF IBERIA PLUS, you can exercise most of these rights through your online profile at ***URL.1, accessing your private area of Iberia Plus in the "My Profile/Preferences" section.
- Likewise, if you are a MEMBER OF ON BUSINESS, you can also exercise most of these rights through your online profile at onbusiness.iberia.com, accessing your private company area.
- To exercise the rest of your rights, or if you are NOT A MEMBER OF IBERIA PLUS or ON BUSINESS, or a REGISTERED CUSTOMER, you can exercise each of the aforementioned rights through the online individual rights management form on our website accessible through Personal Data Management.

To be able to attend to your request, you must provide us, in any case, with the information and documentation required in the aforementioned form as mandatory:

- Your full name of the applicant
- Identity document
- Contact details (at least, email)
- Data subject to your request.
- Any data that helps us locate the data that is the subject of your request, such as locator or flight numbers and dates.
- A photocopy of your identity document or passport, so that we can verify your identity.
- If you submit the request on behalf of another person, it will be necessary for you to provide a signed authorization from that person along with their corresponding identity document."

A search of the company IBERIA LÍNEAS AÉREAS DE ESPAÑA, SOCIEDAD ANÓNIMA OPERADORA was conducted in the Axesor Monitoriza service (***URL.2) on July 21, 2023, obtaining that this company was a "group subsidiary" type company and, in the year 2021, had XXXXX employees and sales of XXXXXXXXXX€.

LEGAL GROUNDS

I

Competence and procedure

In accordance with the functions that Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) confers on each supervisory authority and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is established that there is a processing of personal data, since IBERIA collects and retains, among others, the following personal data of individuals: name and surname, email address, recordings of telephone calls, among other processing activities.

IBERIA carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

III

Attention to the Right of Access of the Data Subject within the Deadline

Article 15 "Right of Access of the Data Subject" of the GDPR establishes:

"1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning him or her are being processed, and, where that is the case, access to

the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. Where personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.

3. The controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee for any further copies requested by the data subject based on administrative costs. When the data subject submits the request by electronic means, and unless otherwise requested by the data subject, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy referred to in paragraph 3 shall not adversely affect the rights and freedoms of others.”

In the present case, on September 7, 2022, the complainant requested access to their personal data by letter attached to an email, without receiving a proper response until January 18, 2023.

Article 12 “Transparency of Information, Communication, and Modalities for the Exercise of the Rights of the Data Subject” of the GDPR states that:

“(…) 3. The controller shall provide the data subject with information regarding its actions based on a request under Articles 15 to 22, without undue delay and, in any event, within one month of receiving the request. This period may be extended by a further two months where necessary, taking into account the complexity and number of requests. The controller shall inform the data subject of any such extension within one month of receiving the request, indicating the reasons for the delay. When the data subject submits the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests otherwise.

4. If the controller does not take action on the request of the data subject, it shall inform the data subject without undue delay, and at the latest within one month of receiving the request, of the reasons for not taking action and of the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy. (…)”

That is to say, the legal deadline established for responding to the complainant's request for access to their personal data has been significantly exceeded.

Therefore, in accordance with the evidence available at this moment, it is considered that the known facts could constitute an infringement attributable to IBERIA for violation of Article 15 of the GDPR.

IV

Prescription of the Infringement of Article 15 of the GDPR

If confirmed, the aforementioned infringement of Article 15 of the GDPR could constitute one of the infringements classified in Article 83.5 of the GDPR, which under the heading “General Conditions for the Imposition of Administrative Fines” provides:

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“5. Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of data subjects under Articles 12 to 22;
- c) the transfers of personal data to a recipient in a third country or an international organization under Articles 44 to 49;
- d) any obligation under the law of the Member States adopted pursuant to Chapter IX;
- e) the non-compliance with a decision or a temporary or definitive limitation on processing or the suspension of data flows by the supervisory authority under Article 58, paragraph 2, or the failure to provide access in violation of Article 58, paragraph 1.”

However, for the purposes of the statute of limitations for violations, the alleged violation shall expire after one year, in accordance with Article 74 of the LOPDGDD, which qualifies the following conduct as minor:

“Minor violations are considered to be those of a merely formal nature from the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679, and shall expire after one year:

(...)

- c) Failure to respond to requests for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, unless the provisions of Article 72.1.k) of this organic law apply. (...)”

In this case, as previously stated, the violation of Article 15 of the GDPR expired after one year, on October 7, 2023, so this violation is currently time-barred.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO PROCEED WITH THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to IBERIA LÍNEAS AÉREAS DE ESPAÑA, S.A. OPERADORA.

THIRD: TO COMMUNICATE the decision to the authority of North Rhine-Westphalia, before which the complaint was filed, so that it may notify A.A.A..

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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